

Not Reported in Fed. Supp.
United States District Court, N.D. California

HALL
v.
YOUTUBE, LLC

Case No. 24-cv-04071-WHO

Decided May 5, 2025

Opinion of the court

Attorneys and Law Firms DaShay Louis Hall Sr., Yukon, OK, Pro Se. Kelly Marie Knoll, Wilson Sonsini Goodrich and Rosati, Palo Alto, CA, for Defendant

ORDER GRANTING MOTION TO DISMISS

In April 2024, Hall became involved in a public feud with another YouTube user, “MoneyBoy Tr3y,” (Tr3y”) which led to the exchange of multiple DMCA1 takedown notices between the two. Id. ¶¶ 18-48. Hall alleges that Tr3y submitted false copyright claims against Hall's videos, leading to YouTube suspending Hall's channels. Id. ¶¶ 19-20, 22-23. Hall also submitted takedown notices of his own against Tr3y, claiming infringement of Hall's video “Tyler Hero Feat. Christy.” Id. ¶¶ 115-116. Hall alleges that these takedown notices, as well as complaints about racist hate speech and defamatory content appearing in TR3Y and other's YouTube channels, were mishandled by YouTube. Id. ¶ 64. According to Hall, YouTube reinstated allegedly infringing content uploaded by Tr3y despite Hall's objections and failed to act on his counter-notifications or harassment complaints. Id. Hall also contends that YouTube improperly removed his content, failed to protect him from harassment by other users, and unfairly terminated his channels, all in breach of YouTube's Terms of Service (“TOS”) and incorporated Community Guidelines. Id. ¶¶ 80-87.2 He seeks damages and injunctive relief

Dkt. No. 19. William H. Orrick, United States District Judge Plaintiff DaShay Hall Sr. is a content creator who operated several YouTube channels under the names “Late Night Crew” and “LNC Sports.” Complaint (“Compl.”), Dkt. No. 1 ¶ 17. He asserts that YouTube mishandled a variety of matters and is liable for copyright infringement (Count VI), breach of contract (Count I), breach of the implied covenant of good faith and fair dealing (Count III), negligence (Count II), and tortious interference with contractual and prospective economic relationships (Counts IV and V). YouTube moves to dismiss because Hall's work was not registered, his other claims are insufficiently pleaded, and his tort claims are also barred by Section 230 of the Communications Decency Act, 47 U.S.C. § 230. It is correct, and I will GRANT the motion to dismiss

BACKGROUND

LEGAL STANDARD Under Federal Rule of Civil Procedure 12(b)(6), a district court must dismiss a complaint if it fails to state a claim upon which relief can be granted. To survive a Rule 12(b)(6) motion to dismiss, the plaintiff must allege “enough facts to state a claim to relief that is plausible on its face.” Bell Atl. Corp. v. Twombly, 550 U.S. 544, 570, 127 S.Ct. 1955, 167 L.Ed.2d 929 (2007). A claim is facially plausible when the plaintiff pleads facts that “allow the court to draw the reasonable inference that the

defendant is liable for the misconduct alleged.” *Ashcroft v. Iqbal*, 556 U.S. 662, 678, 129 S.Ct. 1937, 173 L.Ed.2d 868 (2009) (citation omitted). This standard is not akin to a probability requirement, but there must be “more than a sheer possibility that a defendant has acted unlawfully.” *Id.* While courts do not require “heightened fact pleading of specifics,” a plaintiff must allege facts sufficient to “raise a right to relief above the speculative level.” *Twombly*, 550 U.S. at 555, 570, 127 S.Ct. 1955. In deciding whether the plaintiff has stated a claim upon which relief can be granted, the court accepts the plaintiff’s

allegations as true and draws all reasonable inferences in favor of the plaintiff. See *Usher v. City of Los Angeles*, 828 F.2d 556, 561 (9th Cir. 1987). However, the court is not required to accept as true “allegations that are merely conclusory, unwarranted deductions of fact, or unreasonable inferences.” In re *Gilead Scis. Sec. Litig.*, 536 F.3d 1049, 1055 (9th Cir. 2008). If the court dismisses the complaint, it “should grant leave to amend even if no request to amend the pleading was made, unless it determines that the pleading could not possibly be cured by the allegation of other facts.” *Lopez v. Smith*, 203 F.3d 1122, 1127 (9th Cir. 2000). In making this determination, the court should consider factors such as “the presence or absence of undue delay, bad faith, dilatory motive, repeated failure to cure deficiencies by previous amendments, undue prejudice to the opposing party and futility of the proposed amendment.” *Moore v. Kayport Package Express*, 885 F.2d 531, 538 (9th Cir. 1989). Pro se complaints are held to “less stringent standards than formal pleadings drafted by lawyers.” *Haines v. Kerner*, 404 U.S. 519, 520, 92 S.Ct. 594, 30 L.Ed.2d 652 (1972). Where a plaintiff is proceeding pro se, the Court has an obligation to construe the pleadings liberally and to afford the plaintiff the benefit of any doubt. *Bretz v. Kelman*, 773 F.2d 1026, 1027 n.1 (9th Cir. 1985) (en banc). However, pro se pleadings must still allege facts sufficient to allow a reviewing court to determine whether a claim has been stated. *Ivey v. Bd. of Regents of Univ. of Alaska*, 673 F.2d 266, 268 (9th Cir. 1982). “A pro se litigant must be given leave to amend his or her complaint, and some notice of its deficiencies, unless it is absolutely clear that the deficiencies of the complaint could not be cured by amendment.” *Cato v. United States*, 70 F.3d 1103, 1106 (9th Cir. 1995) (citation omitted)

v. *Universal Music Grp.*, No. LACV194826MWFSSX, 2019 WL 9443183, at (C.D. Cal. Dec. 12, 2019) (taking judicial notice of a copyright registration and dismissing pro se claim for failure to allege pre-filing registration); *Marcus v. ABC Signature Studios, Inc.*, 279 F. Supp. 3d 1056, 1063 (C.D. Cal. 2017) (“Courts routinely take judicial notice of documents from the Copyright Office.”). The application is dated August 10, 2024, approximately one month after this lawsuit was filed on July 5, 2024. *Knoll Decl.*, Ex. 9. In addition, YouTube points to the Copyright Claims Board complaint Hall filed against the alleged infringer which admits that, as of August 10, 2024, the work “Tyler Hero Pt. 1” had not been registered by the Copyright Office. See *Knoll Decl.*, Ex. 3.3 Hall does not dispute this evidence or suggest that he registered the work prior to July 5, 2024. Instead, he argues that courts do not require “exhaustive proof of registration at the pleading stage” and that the Complaint “alleges sufficient facts to establish ownership and infringement.” Opposition to Defendant’s Motion to Dismiss (“Oppo.”), Dkt. No. 23, 17:5-12

DISCUSSION

Hall does not dispute that the video at issue, “Tyler Hero Feat. Christy,” was registered over a week after the complaint was filed. The Copyright Act provides that “no civil action for infringement ... shall be instituted until preregistration or registration of the copyright claim has been made in accordance with this title.” 17 U.S.C. § 411(a). In other words, a plaintiff must obtain copyright registration before initiating an infringement suit. See *id.* The Supreme Court has held that a copyright owner cannot sue for infringement until the Copyright Office registers a copyright. *Fourth Estate Pub. Benefit Corp. v. Wall-Street.com, LLC*,

586 U.S. 296, 302, 139 S.Ct. 881, 203 L.Ed.2d 147 (2019). His copyright infringement claim therefore fails as a matter of law by not meeting the threshold requirement of 17 U.S.C. § 411(a)

I. COPYRIGHT INFRINGEMENT (COUNT VI) YouTube argues that Hall's copyright infringement claim must be dismissed because the work at issue ("Tyler Hero Feat. Christy") was not registered prior to the lawsuit as required by 17 U.S.C. § 411(a). Motion to Dismiss ("MTD"), Dkt. No. 19, at 6:14-15. It submits the copyright registration application for the work at issue from the U.S. Copyright Office. I take judicial notice of it; courts may take judicial notice of copyright registrations as public records. See Kiely

District courts have split on the issue of whether to allow plaintiffs leave to amend an existing, but premature at the time of filing suit copyright infringement claim or whether the claim must be dismissed and refiled (if appropriate) in a second suit. See *Roblox Corp. v. WowWee Grp. Ltd.*, 660 F. Supp. 3d 880, 890 (N.D. Cal. 2023) (discussing cases on both sides of the divide and ultimately dismissing claim without prejudice but also without leave to amend as "permitting plaintiffs to cure their failure to register the

copyright before suing would undermine" Supreme Court precedent). I agree with other courts in this District that leave to amend cannot be provided and instead Hall's copyright claim must be dismissed from this case as plaintiff had not registered the work before filing. See *Roblox Corp. v. WowWee Grp. Ltd.*, 660 F. Supp. 3d at 890; *Kifle v. YouTube LLC*, 2021 WL 1530942, at (N.D. Cal. Apr. 19, 2021) (dismissing claim because "the plain language of § 411(a) refers to the beginning of a lawsuit, not the filing of an amended pleading"); *UAB "Planner 5D" v. Facebook, Inc.*, No. 19-cv-3132-WHO, 2019 WL 6219223, at (N.D. Cal. Nov. 21, 2019) (stating that a plaintiff "cannot cure its failure to meet the preconditions set forth in 17 U.S.C. § 411(a) by amending [the plaintiff's] pending complaint"); *Izmo, Inc. v. Roadster, Inc.*, 2019 WL 2359228, 2019 U.S. Dist. LEXIS 93568 (N.D. Cal. June 4, 2019) (dismissing plaintiff's copyright infringement claims without prejudice and not permitting amendment to cure the plaintiff's failure to register its copyright). Hall relies on *Reed Elsevier, Inc. v. Muchnick*, 559 U.S. 154, 130 S.Ct. 1237, 176 L.Ed.2d 18 (2010) and *Scahill v. D.C.*, 909 F.3d 1177 (D.C. Cir. 2018), to argue that registration is a procedural defect that may be cured during litigation. *Oppo*, 17:15-22. These cases are distinguishable. *Reed* clarified that § 411(a)'s registration requirement is not jurisdictional, but did not abrogate the requirement that registration must precede suit. 559 U.S. at 171, 130 S.Ct. 1237. *Scahill*, a case outside the copyright context, addressed exhaustion principles under different statutory schemes and does not override the express holding in *Fourth Estate* that copyright registration is a mandatory precondition to bringing suit. 909 F.3d at 1179. Hall's copyright infringement claim was unripe at the time of filing and must be dismissed for failing to meet the threshold requirement of 17 U.S.C. § 411(a).⁴ If Hall wishes to proceed with his Copyright Act claim, he must file a new lawsuit. See *Fourth Estate*, 586 U.S. at 307, 139 S.Ct. 881 (explaining that "a copyright claimant may commence an infringement suit[] when the Copyright Office registers the copyright."). II. BREACH OF CONTRACT CLAIMS (COUNTS I, III) Hall's breach of contract claims rest on allegations that YouTube mishandled his DMCA notices and counter-notices, failed to reinstate his content, failed to take down infringing

content, wrongfully terminated his channels, and failed to remove harassing videos posted by other users in breach of YouTube's promises in its TOS and Community Guidelines. Compl. ¶¶ 56-59, 71-86. YouTube argues that he has failed to plead a claim for breach of contract because he does not identify which provisions in the TOS or Community Guidelines he believes YouTube breached. Even if he had identified specific provisions, however, YouTube also contends that breach of contract claims would be precluded given that the TOS grant YouTube broad discretion to remove content and suspend accounts.

MTD at 10:4-20. To state a breach of contract claim under California law, a plaintiff must identify the specific contractual provision breached, or at least plead the legal effect of the agreement. While it is not necessary to quote or attach the contract, a complaint must provide sufficient detail to give fair notice of the contractual obligation allegedly violated. See *Construction Protective Servs., Inc. v. TIG Specialty Ins. Co.*, 29 Cal. 4th 189, 198–99, 126 Cal.Rptr.2d 908, 57 P.3d 372 (2002). Courts have consistently dismissed breach of contract claims where plaintiffs fail to allege the relevant promise or term that was supposedly breached. See e.g., *LevelFields, Inc. v. Reddit, Inc.*, No. 24-CV-02760-WHO, 2024 WL 5161951, at (N.D. Cal. Dec. 17, 2024) (dismissing contract claim where the plaintiff failed to heed the Court's direction “to identify the particular language in the Agreement it contends that Reddit breached and provide support for its interpretation of [a particular] term” in the complaint); *Young v. Facebook, Inc.*, 790 F. Supp. 2d 1110, 1117 (N.D. Cal. 2011) (holding that “[i]n an action for breach of a written contract, a plaintiff must allege the specific provisions in the contract creating the obligation the defendant is said to have breached.”). Hall does not identify any specific provision of the TOS that imposes a duty on YouTube to act on user reports or to restore content. That by itself requires dismissal with leave to amend of the breach of contract claims. See *LevelFields*, 2024 WL 5161951. The cases Hall cites in his Opposition stand for a different proposition, that a breach of contract claim need not quote or attach the contract and may instead plead its legal effect. *Oppo.* 20:15-21:3; see also *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.*, 29 Cal.4th 189, 198-99, 126 Cal.Rptr.2d 908, 57 P.3d 372 (2002); *Miles v. Deutsche Bank National Trust Co.*, 236 Cal.App.4th 394, 402, 186 Cal.Rptr.3d 625 (2015); *Pneucrete Corp. v. U.S. Fidelity & Guaranty Co.*, 7 Cal.App.2d 733, 741-742, 46 P.2d 1000

(1935). The issue here is that Hall is alleging that YouTube breached specific promises in either its TOS or Community Guidelines, but does not identify which provisions were violated. Hall's cases are distinguishable. In *Construction Protective Services*, for example, the plaintiff adequately alleged the contractual obligations at issue, which gave the defendant fair notice of the claim. 29 Cal.4th at 190, 126 Cal.Rptr.2d 908, 57 P.3d 372. By contrast, Hall fails to identify even the basic terms or promises from YouTube's TOS that he contends were breached. In *Miles*, the complaint identified the contractual duty breached—namely, the requirement that foreclosure proceedings be conducted lawfully—which was sufficient to support the claim. 236 Cal.App.4th at 402, 186 Cal.Rptr.3d 625. Hall has not provided comparable specificity. Finally, *Pneucrete Corp.* concerned whether a surety's liability was triggered by performance under a bond, which was not disputed as to its basic terms. 7 Cal. App. 2d at 742, 46 P.2d 1000. Here, the TOS and Community Guidelines cover dozens of topics; without identifying the specific provisions that Hall believes YouTube violated, YouTube does not have fair notice of the basis or bases of Hall's contract-based claims. Hall's cases do not relieve him of his burden to identify what promises YouTube allegedly made and broke. While a plaintiff need not quote or attach the contract, he must still describe its terms with enough detail to state a plausible claim. Hall has not done so. His implied covenant claim fails for the same reason. “[T]o state a claim for breach of the implied covenant of good faith and fair dealing, a plaintiff must identify the specific contractual provision that was frustrated.” *Andersen v. Stability AI Ltd.*, 744 F. Supp. 3d 956, 985 (N.D. Cal. 2024) (citation omitted). Even more problematic for Hall, YouTube's TOS expressly reserves broad discretion to YouTube to remove or retain content and disclaims any obligation to host content. YouTube's TOS specifically states that “YouTube is under no obligation to host or serve Content,” and that “we reserve the right to remove or take down some or all of such Content in our discretion.” See *Knoll Decl.*, Ex. 1 at 4, 10; see also *Prager Univ. v. Google LLC*, 85 Cal. App. 5th 1022, 1038, 301 Cal.Rptr.3d 836 (2022) (YouTube's TOS “contain no provision purporting

to constrain defendants' conduct as publishers" and that YouTube's community guidelines "in

no way purport to bind defendants to publish any given video, or to remove a video only for violation of those guidelines."); *Murphy v. Twitter, Inc.*, 60 Cal. App. 5th 12, 35, 274 Cal.Rptr.3d 360 (2021) (breach of contract "claim necessarily fails, however, because Twitter's terms of service expressly state that they reserve the right to 'suspend or terminate [users'] accounts ... for any or no reason' without liability."). This broad provision would likely defeat Hall's breach of contract claim based on an express provision, and would likewise preclude his implied covenant claims. See *Ebeid v. Facebook, Inc.*, No. 18-CV-07030-PJH, 2019 WL 2059662, at (N.D. Cal. May 9, 2019) (an implied covenant cannot create duties that contradict express terms of the contract). Hall's allegations do not identify any specific benefit under the TOS that YouTube wrongfully withheld from him— particularly one that the TOS did not already reserve YouTube the right to deny in its discretion. Because the TOS explicitly allows YouTube to remove content and terminate accounts without cause, Hall cannot plausibly claim that these actions unfairly deprived him of a promised benefit. Hall relies on *Carma Devs (Cal.), Inc. v. Marathon Dev. Cal., Inc.*, 2 Cal.4th 342, 6 Cal.Rptr.2d 467, 826 P.2d 710 (1992) to argue that YouTube had an obligation to exercise discretion under the TOS in good faith. *Oppo.* 28:17-20. But *Carma Devs* concerned a commercial lease agreement where the landlord's termination right was subject to implied limitations. Here, YouTube's TOS explicitly reserves broad unilateral discretion to remove content and terminate accounts. See *Knoll Decl.*, Ex. 1 at 10 ("[YouTube] reserve[s] the right to remove or take down some or all of such Content in our discretion."). "[A]s a general matter, implied terms should never be read to vary express terms." *Carma Devs.*, 2 Cal. 4th at 374, 6 Cal.Rptr.2d 467, 826 P.2d 710. Hall's Complaint alleges no facts showing that YouTube exercised its discretion in bad faith or otherwise in a manner prohibited by the contract.⁵ Hall's contract claims are dismissed with leave to amend. If he chooses to amend his claims, he must identify the specific provisions of YouTube's TOS or Community Guidelines that he believes YouTube violated, as well as facts that show YouTube made acts in bad faith or that YouTube otherwise took acts with respect to him that went beyond its

handling of his DMCA notices and counter-notices, closing or reopening his channels, or failing to remove content he found objectionable.⁶ III. TORT CLAIMS (COUNTS II, IV, V) Hall alleges three tort claims for negligence and tortious interference with contract and prospective economic advantage based on his claims that YouTube negligently failed to process his DMCA notices (asking YouTube to take down infringing content) and DMCA counter-notifications (seeking to restore Hall's own content), and allowed harassing videos to remain up. *Compl.* ¶¶ 63-67, 89-98, 100-113. He contends that these failures by YouTube disrupted his contracts with sponsors and his relationship with his viewers, costing him income. *Id.* ¶¶ 91-93. He argues that YouTube had a duty, both statutory and contractual, to process the DMCA notices claims in a timely and responsible manner and to take action against content that violated YouTube's Community Guidelines. *Id.* ¶ 121. YouTube moves to dismiss the tort claims, arguing that the negligence claims fail because Hall failed to identify any facts that could support YouTube owing a duty of care to him with respect to its content moderation actions, and the interference claims fail because no plausible facts are alleged to support a claim that YouTube knew of and intended to disrupt Hall's contracts and because no specific or probable contracts have been identified. Next, even if those pleading deficiencies could be corrected, YouTube asserts that the tort claims still fail, as all of the conduct alleged by YouTube falls within the broad immunity provided by Section 230 of the Communications Decency Act, 47 U.S.C. § 230(c) (1) ("Section 230"). *MTD* 14:14-16:25.⁷ Finally, YouTube contends that its editorial decisions, including whether to restore content or terminate accounts, are protected under the First

Amendment. Hall's negligence claim fails under traditional tort principles. Under California law, there is no duty to protect others from conduct of third parties – here the alleged allowing of content on YouTube sites that violated Hall's alleged copyrights or harassed him or his family – absent the existence of a legally recognized “special relationship” between the parties giving rise to an “affirmative duty” to protect. See *Jane Doe No. 1 v. Uber Techs., Inc.*, 79 Cal. App. 5th 410, 419–20, 294

Cal.Rptr.3d 664 (2022). Online platforms do not owe their users a general duty of care to manage or investigate DMCA takedown notices or counter-notices or to respond harassment reports unless the contract entered into “itself imposes a duty to protect.” *Id.* (internal citations omitted); see also *Ginsberg v. Google Inc.*, 586 F. Supp. 3d 998, 1009 (N.D. Cal. 2022) (no “authority for the proposition that Google's publication of guidelines for its app developers creates an enforceable duty to any purchaser of an Android device”). As to the tortious interference with existing contracts, Hall fails to identify any specific relationships or contracts with which YouTube allegedly interfered. Vague references to Hall's “sponsors” or “advertisers” with whom he alleged that YouTube's acts interfered are insufficient to support a claim under California law absent plausible allegations that YouTube knew Hall's specific sponsors or advertisers. Compl. ¶ 89, 91-92, 98; see *Swipe & Bite, Inc. v. Chow*, 147 F. Supp. 3d 924, 935 (N.D. Cal. 2015) (holding that a claim requires pleading defendant's knowledge of specific contracts with “specific customers”); see also *AdTrader, Inc. v. Google LLC*, No. 17-CV-07082-BLF, 2018 WL 3428525, at (N.D. Cal. July 13, 2018) (dismissing claim where the “FAC alleges that AdTrader had contractual relationships with over two hundred web publishers. [] However, the FAC does not plead sufficient factual allegations that show that Google purportedly interfered with a specific contract for each web publisher.”). Similarly, to allege tortious interference with prospective economic advantage, Hall must identify the existence of an “‘economic relationship with some third party that contains the probability of future economic benefit to the plaintiff,’ ” but he has not done so, much less alleged that YouTube knew of that specific relationship and intended to disrupt it. *Olson v. World Fin. Grp. Ins. Agency, LLC*, No. 24-CV-00477-EJD, 2024 WL 3498572, at (N.D. Cal. July 19, 2024) (quoting *Roy Allan Slurry Seal, Inc. v. Am. Asphalt S., Inc.*, 2 Cal. 5th 505, 509, 213 Cal.Rptr.3d 568, 388 P.3d 800 (2017)).⁸ The Ninth Circuit requires more than a contractual breach—it must be wrongful conduct. See *Song Fi Inc., v. Google, Inc.*, 108 F. Supp. 3d 876, 887-88 (N.D. Cal. 2015) (dismissing a claim for tortious interference and finding that removing a video from YouTube did not qualify as an act that “was ‘wrongful’ apart from the tortious interference itself”)

More fundamentally, Hall's tort claims are based only on YouTube's content moderation acts (taking down content or channels or allowing content and channels), and for that reason are barred by Section 230 immunity. Courts have consistently held that online platforms are not liable for their decisions to publish, remove, or allow third-party content. See *Dyroff v. Ultimate Software Grp., Inc.*, 934 F.3d 1093, 1099 (9th Cir. 2019) (holding that algorithmic recommendations are protected by Section 230); *Barnes v. Yahoo!, Inc.*, 570 F.3d 1096, 1103 (9th Cir. 2009) (failure to remove content cannot support tort liability given Section 230). Hall's allegations are premised on YouTube's decisions to allow or disallow specific videos and to host or shut down channels, which all falls squarely within Section 230 immunity. Hall attempts to escape this bar by citing *Doe No. 14 v. Internet Brands, Inc.*, 824 F.3d 846 (9th Cir. 2016), where the Ninth Circuit found that a “special duty” existed supporting a negligence claim given that an internet service provider's failure to warn used known information about how known “third parties targeted and lured victims through” the site. *Id.* at 851. Because the “failure to warn claim has nothing to do with [the site's] efforts, or lack thereof, to edit, monitor, or remove user generated content,” the claim was not barred by Section 230. *Id.* at 852. *Doe* did not involve the moderation of third-party content but rather

the failure to warn of offline criminal conduct unrelated to publishing decisions. By contrast, Hall's theory is entirely rooted in YouTube's management—or mismanagement—of user-generated videos and channels. *Oppo*, 38:7-16. That conduct is at the heart of, and is protected by, Section 230. Based on the current allegations, all three of Hall's tort claims fails to state a claim and are barred by Section 230. These claims will be dismissed with leave to amend, in case Hall is able to allege an actionable tort claims that falls outside the scope of Section 230's immunity

CONCLUSION Hall's copyright claim is DISMISSED without prejudice but without leave to amend in this case. Hall's breach of contract and tort claims are DISMISSED with leave to amend. Any amended complaint must be filed within twenty two (22) days of the date of this Order. IT IS SO ORDERED